

Court No. - 29

Case :- WRIT - C No. - 36468 of 2024

Petitioner :- Om Prakash Gupta

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shivendra Nath Singh

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Vivek Kumar Birla,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard Sri Shivendra Nath Singh, learned counsel for the petitioner, learned Standing Counsel appearing for the respondent-State of U.P. and Sri Chetan Chatterjee, learned counsel appearing for the respondent nod 4, the Executive Engineer, Vidyut Vitran Khand-II, Purvanchal Vidyut Vitaran Nigam Ltd., Mau, District Mau.

2. The present petition has been filed for quashing the office memorandum/order of final bill dated 29.04.2024, issued by the Executive Engineer/respondent No. 4 and also the recovery warrant dated 05.08.2024 issued by the Tehsildar, Tehsil Ghosi, District Mau/respondent No. 3 to the tune of Rs.9,04,911/- against the petitioner. Further, the petitioner has prayed for a direction to the authority concerned restraining it from taking any coercive action against the petitioner pursuant to the aforesaid recovery warrant.

3. We find that the petitioner had earlier approached this Court by filing **Writ - C No. - 29206 of 2024 [Om Prakash Gupta Vs. State of U.P. and 3 Others]**, which was dismissed vide order dated 04.09.2024 in the following terms:

"1. The instant petition is directed against the arrest warrant issued by the

Recovery Officer in course of recovery of electricity dues from the petitioner as arrears of land revenue.

2. The main order in pursuance of which the said recovery is being made is not under challenge nor has been annexed with the writ petition.

3. Shri Chetan Chatterjee, learned counsel appearing for the respondent - Electricity Department points out that petitioner has already approached the District Consumer Forum with the prayer to reconnect the electricity supply and the said proceedings are pending. Since the main order under which the recovery is being made, is not before this Court nor under challenge, therefore, no good ground is made out to interfere with the impugned arrest warrant.

4. In view of the above, the petition lacks merit and is accordingly **dismissed**.

5. However, petitioner is at liberty to challenge the main order in independent proceedings, in accordance with law."

4. Now the present petition has been filed by the petition with the prayers as noted above.

5. At this stage, the contention of the learned counsel for the petitioner is that no opportunity of hearing was accorded to the petitioner, however, we find that the representation filed by the petitioner was rejected vide order dated 24.09.2024 (Annexure -12 to the writ petition), which is not under challenge.

6. However, learned counsel for the respondent No. 4 has pointed out that in case the petitioner is disputing the correctness of the bills and arrears, he has a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, by depositing the amount as provided under the aforesaid clause.

7. Learned counsel for the petitioner, at this stage, submits that the petitioner shall file a fresh representation/application for raising his grievance against the bills and arrears so raised against the petitioner by complying the statutory provision of deposit.

8. In such view of the matter, the present petition is **disposed of** with liberty to the petitioner to avail the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, which shall be

considered and decided by the respondent No. 4 on its own merits.

9. In case the aforesaid remedy is invoked by the petitioner within a period of ten days from today, the same shall be considered by the respondent No. 4 in accordance with law.

10. In the interest of justice, it is provided that for a period of two months or till disposal of the representation/application to be filed by the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner for recovery of the amount.

11. However, it is made clear that if the petitioner fails to avail the aforesaid remedy within the aforesaid period, the protection granted to the petitioner shall automatically stand vacated and the respondent authority(ies) shall have the liberty to proceed against the petitioner in accordance with law.

Order Date :- 6.11.2024

Arun K. Singh